

XHI v XHJ

[2026] SGHCF 19, Divorce (Transferred) No 5149 of 2023

General Division of the High Court (Family Division) of Singapore

Jurisdiction

Singapore

Area of law

Family law - matrimonial assets division and spousal maintenance

Legal question

How should the matrimonial assets of a couple married for approximately 24 years be divided fairly and equitably? What is the appropriate quantum of spousal maintenance to be awarded to the wife? Specifically, the court must determine the valuation and inclusion of disputed assets, the treatment of allegedly dissipated assets, and the proportionate contributions of each party to the matrimonial pool.

Key facts

The parties were married on 12 February 2000 for approximately 24 years. The husband is a sales manager and the wife is a healthcare professional employed by the public service. They have two adult children who are gainfully employed. In 2008, they purchased an HDB flat which they initially rented out before moving in around 2012. In 2015, they decoupled the joint ownership, with the wife becoming sole owner after refunding the husband's CPF contributions of approximately \$139,190. Subsequently in May 2015, they purchased a condominium unit at Tai Thong Crescent in the husband's sole name for \$1,606,730. They moved into the condo in August 2017 after renovation. On 29 September 2023, a physical altercation occurred between the parties resulting in the wife's hospitalization. A Personal Protection Order was granted by consent on 15 February 2024. The husband commenced divorce proceedings on 25 October 2023, and interim judgment was granted on 23 April 2024. The ancillary matters concern division of matrimonial assets and the wife's claim for spousal maintenance.

Holding

The court determined the matrimonial pool of assets to be valued at the date of ancillary matters hearing (except for bank and CPF accounts valued at the date of interim judgment). Regarding the husband's assets, the court valued the condo unit at \$1,323,502.21 (net of mortgage), rejected the wife's inflated valuation, and included the motor vehicle's scrap value of \$18,739. The court found the husband had liquidated ETF holdings totaling approximately \$84,741.12 after divorce proceedings commenced without the wife's consent, constituting substantial dissipation of matrimonial assets under the TNL v TNK principles, and added these values back to the pool using the unit prices at 30 November 2023. Regarding the SCB Wealth Saver account containing \$503,882, the court found the husband had failed to discharge his burden of proving this was held on trust for his mother and friend, rejecting the trust arrangement as lacking credible documentary evidence and containing numerous inconsistencies. This sum was therefore included as a matrimonial asset. For APAX Tech Pte Ltd's \$100,000 paid-up capital, an adverse inference was drawn against the husband for concealment, with \$30,000 (after accounting for the \$70,000

previously added to the \$503,882 sum) included in the pool. The home theatre sound system was valued at \$2,500 using a broad-brush approach. The husband's total assets were determined at approximately \$2,598,492.

Significance

This judgment provides important guidance on several matrimonial law principles in Singapore. It clarifies the court's approach to asset dissipation under *TNL v TNK*, establishing that when ETF holdings are liquidated over multiple instances after divorce proceedings commence, the court may adopt the unit prices at the earliest date when liquidations commenced as a fair valuation method when complete transaction records are unavailable. The decision emphasizes the stringent evidentiary requirements for excluding assets from the matrimonial pool on grounds of holding assets in trust, particularly when significant sums are involved and substantial documentation is lacking. It demonstrates the court's willingness to draw adverse inferences against parties who fail to adequately explain asset movements and deposits, particularly when the party has access to relevant information. The judgment also illustrates the application of broad-brush valuation approaches for items lacking objective evidence of value.

Precedent impact

The judgment applies and extends principles from *TNL v TNK* [2017] 1 SLR 609 on asset dissipation, following the quantification approach established in *XIM v XIN* [2025] SGHCF 31 and *XRM v XRN* [2025] SGHCF 55 for determining the valuation date of dissipated assets. It relies on the adverse inference framework from *UZN v UZM* [2021] 1 SLR 426 and *XIU v XIV* [2025] SGHCF 28, confirming that a prima facie case of concealment and access to information must be established before adverse inferences are drawn. The decision applies the default operative dates from *ARY v ARX* [2016] 2 SLR 686, *BPC v BPB* [2019] 1 SLR 608, and *CVC v CVB* [2023] SGHC(A) 28 for identifying and valuing matrimonial assets. It also follows *USB v USA* [2020] 2 SLR 588 regarding the burden of proof when claiming assets are not matrimonial assets.

Full judgment URL

https://www.elitigation.sg/gd/s/2026_SGHCF_19